road Company, 118 U. S. 394; *Pembina Consolidated Silver Mining and Milling Co.* v. *Pennsylvania*, 125 U. S. 187. But the hazardous character of the business of operating a railway would seem to call for special legislation with respect to railroad corporations, having for its object the protection of their employés as well as the safety of the public. The business of other corporations is not subject to similar dangers to their employés, and no objections, therefore, can be made to the legislation on the ground of its making an unjust discrimination. It meets a particular necessity, and all railroad corporations are, without distinction, made subject to the same liabilities. As said by the court below, it is simply a question of legislative discretion whether the same liabilities shall be applied to carriers by canal and stage coaches and to persons and corporations using steam in manufactories. See *Missouri Pacific Railway Co.* v. *Humes*, 115 U. S. 512, 523; *Barbier* v. *Connolly*, 113 U. S. 27; *Soon Hing* v. *Crowley*, 113 U. S. 703.

Judgment affirmed.

MINNEAPOLIS AND ST. LOUIS RAILWAY COMPANY *v.* HERRICK.

ERROR TO THE SUPREME COURT OF THE STATE OF MINNESOTA.

No. 202. Argued April 2, 3, 1888. — Decided April 23, 1888.

This case is affirmed on the authority of *Missouri Pacific Railway Co.* v. *Mackey*, *ante*, 205.

The case is stated in the opinion.

Mr. C. K. Davis for plaintiff in error.

Mr. Edward J. Hill for defendant in error.

Mr. Justice Field delivered the opinion of the court.

The defendant is a corporation created under the laws of Minnesota, and in December, 1881, it operated a railroad ex-